Bluebook Training, Rules 5-9

Wednesday, February 18, 2026

Admissions Updates

February 18 – Big Day!

- **Practice Critical Essay** Due at 5:00 pm
  - Note on Student ID Number (9-digit number on bottom left of ID)
- Sourcecite **Exam Conflict Form** Due at 11:59 pm
- Reach out to SAS for **Sourcecite Exam Accommodations** by 11:59 pm
- DE Office Hours, 4-5 pm, SLB Dining Hall

Admissions Events!

- **Inside the First Year**: Perspectives from Upper Masthead on Tuesday, **February 24**, 12:10 pm
- **Inside Upper Masthead**: Student Perspectives on Thursday, **February 26**, 2:10 pm

Notes

- **If you have not yet started studying for the Sourcecite Exam, you are <u>not</u> behind!**
- **If you feel like you do not have a full handle on categorizing claims in the Critical Essay, that is okay!**
- **We will give you everything you need to correct objective errors on the Exam. If you do not have the means to correct an objective error, leave an LE Query.**

Rule 5: Quotations

Rule 5.1(b)

Formatting Quotations

- If the quotation is 49 or fewer words:
  - Enclose in quotation marks but do not otherwise set off from the text. "CURLY" quotation marks, not "straight"!!
  - Commas and periods always go inside quotation marks; other punctuation appears inside only if part of original text
    - YES: She told me that "*Bluebook*ing is fun," and I agree.
    - NO: She told me that "*Bluebook*ing is fun", and I agree.

Rule 5.1(a)

- If the quotation is 50 or more words:
  - Format as a block quotation
  - Indent on the left and right, no quotation marks, single-spaced, fully justified
  - Citation placement:
    - In main text: footnote call number appears right after final punctuation
    - In footnote text: in-text citation appears on the line immediately following the quotation (not indented)
- Does NOT apply to quotations in explanatory parentheticals in footnotes

Rule 5.1(a)

reliable research designs, or poor, unrepresentative evidence—better deserves the label *guesstimated CBA*. Robert W. Hahn and co-authors, for example, criticized executive agencies for failing to comply with Executive Orders requiring CBA,[16] based on the authors' assessment that

> agencies only quantified net benefits—the dollar value of expected benefits minus expected costs—for 29 percent of the forty-eight rules [reviewed by the authors], even though the Executive Order directs agencies to show that the benefits of a regulation "justify" the costs. . . . Although agencies may present reasons not to quantify and monetize benefits and costs, . . . we believe they should be able to meet the requirements of the Executive Order for a majority of regulations.[17]

Expectations of quantification have found their way into legal decisions overturning financial regulations, as discussed in Part II. For example, in *Chamber of Commerce v. SEC*, the D.C. Circuit held that the SEC acted arbitrarily and capriciously for failing to undertake some effort to quantify the costs of the mutual fund governance rule changes it had adopted.[18]

main text

22. Neither Arrow nor Hahn provide evidence or cite to research supporting their views that quantification "should be possible" in "most" instances as applied to executive agencies. However, they are careful to note that

> [b]enefits and costs of proposed policies should be quantified wherever possible. . . . In most instances, it should be possible to describe the effects of proposed policy changes in quantitative terms; however, not all impacts can be quantified, let alone be given a monetary value. There-fore, care should be taken to assure that quantitative factors do not dominate important qualitative factors in decision-making.

Kenneth J. Arrow et al., *Is There a Role for Benefit-Cost Analysis in Environmental, Health, and Safety Regulation?*, 272 SCIENCE 221, 222 (1996).

footnote text

Rule 5.1(a)(ii)

12. *See, e.g.*, Act of May 10, 1770, 1770 Conn. Pub. Acts 352 (establishing procedures for the consideration of petitions, prayers, and memorials to the general assembly); Act of Feb. 21, 1778, ch. 14, 1778 N.J. Laws 29 (granting Mr. Stiles's petition to divorce Abigail, on account of his "being no longer able to endure the Misconduct, Extravagance, Drunkenness, Lewdness and Adultery" for which his wife had become infamous, after an "examination of witnesses" established her guilt); JOURNAL OF THE PROCEEDINGS OF THE LEGIS.-COUNCIL OF THE STATE OF N.J. 18 (11th Sess. 1786) ("The House resumed the Consideration of the Bill, intitled 'An Act to repeal an Act, intitled, An Act for remedying certain Defects in the Testament and Last Will of Thomas Shreve, late of the County of Salem, deceased, and to establish and confirm the said Testament and Last Will;' and proceeded to the Hearing of the Parties: The Parties not having gone through their Evidence, the further Consideration of the said Bill was postponed until To-morrow Morning ten o'Clock." The next day, Wednesday, November 15, 1786, the Journal states that the House resumed consideration of the Bill, the parties went through their evidence, and the "Bill was ordered a third reading.").

Explanatory parenthetical in a citation sentence

S.R. 5.1(a)

Word Count

- Hyphenated words count as a single word
- Words added in brackets count toward the word count
- Ellipses do not count toward the word count

S.R. 5.1(a)

Do not use incomplete clauses with colons to introduce block quotes. Instead, use EITHER complete clauses with colons OR incomplete clauses with no punctuation (in the latter case, the first word of the quote should not be capitalized).

Complete clause WITH ":" or ","	Incomplete clause with NO punctuation	Do not use an incomplete clause with
The Court stated: "[T]here is no support here."	The Court stated that "there is no support here."	The Court stated that: "[T]here is no support here."
The Court stated, "[T]here is no support here."		

S.R. 5.2

Capitalization of Quotations

If the quotation is a syntactical part of the sentence, the first letter should be lowercase. If not, capitalize.

Original source: Plough deep, while sluggards sleep.

Article: Benjamin Franklin reminds us to "[p]lough deep, while sluggards sleep."

Original source: Remember, my name is Benjamin.

Article: As Franklin said, "Remember, my name is Benjamin."

As Franklin said, "[M]y name is Benjamin."

Rule 5.2

Alteration of Quotations

- Use brackets to signify alterations
  - The public confidence in the system depended on full disclosure. → "[P]ublic confidence in the [adversarial] system depend[s] on full disclosure."
  - jogging in the park → "jog[] in the park"
- Use [sic] to denote mistakes in the original
  - Use sparingly

Rule 5.2(e)-(f)

Quotations Within Quotations

- Always attribute a quotation within a quotation to its original source.
  - Use a (quoting . . .) or (citing . . .) parenthetical
- Use single quotation marks for the internal quotation, except when the material quoted consists entirely of a quotation within a quotation (S.R. 5.2).
  - Original source: Tony the Tiger said, "Frosted Flakes are more than good; they're great."
    - Right: "Tony the Tiger said, 'Frosted Flakes are more than good; they're great.'"
    - Right: "Frosted Flakes are more than good; they're great."
    - Wrong: "'Frosted Flakes are more than good; they're great.'"
- If multiple layers, alternate between single and double quotations.

Rule 5.3

Omissions

- Ellipses are formatted as ". . ."
  - Use a **non-breaking space** before and after each period
- Pay attention to whether the quoted language is being used as a phrase or clause (Rule 5.3(a)) versus when used as a full sentence (Rule 5.3(b)). Different rules apply!

Phrase/Clause	Full Sentence
Original source: National borders are less of a barrier to economic exchange now than at almost any other time in history.	
Article: I agree that "[n]ational borders are less of a barrier now."	Article: "[B]orders are less of a barrier to economic exchange now . . . ."

Rule 5.3(a)

- When used as a phrase or a clause
  - Do not indicate an omission of matters before or after a quotation
  - Only indicate omission of a matter within the phrase or clause quoted

Phrase/Clause
Original source: National borders are less of a barrier to economic exchange now than at almost any other time in history.
Article: I agree that "[n]ational borders are less of a barrier to economic exchange now."
Article: I agree that "[n]ational borders are less of a barrier to . . . exchange" today.

Rule 5.3(b)

- When using a quote as a full sentence…
  - Do not insert an ellipsis at the beginning
  - Insert ellipsis in the middle if omitting quoted material in the middle
  - Insert ellipsis at the end if omitting quoted material at the end; include final punctuation as read by the Article's reader (S.R. 5.3)

Rule 5.3(b)

Full sentence
Original source: National borders are less of a barrier to economic exchange now than at almost any other time in history. As economic activity continues its relentless drive toward world-wide scope, trademarks become even more important.
Article: "[B]orders are less of a barrier to economic exchange now . . . ."
Article: "National borders are less of a barrier to . . . exchange now . . . . [E]conomic activity continues its relentless drive toward world-wide scope . . . ."

Omissions

It is worth your time to look at the examples under Rule 5.3(b) and S.R. 5.3. These come up a lot when sourceciting because authors are always quoting sources! And remember you will have sources to check on your Sourcecite Exam.

Rule 6:

Abbreviations, Numerals, and Symbols

Rule 6.1(a)

Abbreviations

- All the abbreviations you will need appear in the Tables
- Close up adjacent single capital letters
  - D.D.C., S.D.N.Y.
- But set off capital letters referring to an institutional entity
  - B.C. L. Rev. → ~~not B.C.L. Rev.~~
  - N.Y.U. L. Rev. → ~~not N.Y.U.L. Rev.~~
  - S. Ill. U. L.J. → ~~not S. Ill. U.L.J.~~

Rule 6.1(a)

- Do not close up single capital letters with longer abbreviations. Include a space adjacent to abbreviations of two or more letters.
  - D. Mass., S. Ct. , F. Supp. 2d
- Individual numbers (including ordinals) are treated as single capitals
  - F.3d
  - Cal. App. 3d
  - F. Supp. 2d

Rule 6.1(b)

- Abbreviations should be followed by a period, unless
  - the last letter is set off with an apostrophe (*e.g.*, Ass'n), or
  - it is an entity that is commonly referred to by its initials (*e.g.*, FBI, NAACP, FDA)

- United States may be abbreviated to U.S. in text <u>only</u> when used as an adjective. Never omit the periods.
  - Wrong: They immigrated to the U.S.
  - Right: They immigrated to the United States.
  - Right: She studies U.S. history.

S.R. 6.1

- S.R. 6.1: Non-*Bluebook* abbreviations may be introduced if they appear more than once throughout the article
- First reference in both the main text (abstract doesn't count) and the footnote text: spell out the words and include the abbreviation in parentheses
  - This Article discusses the Equal Rights Amendment (ERA).
  - Except for abbreviations that are so common that they are never spelled out, like DNA, IQ, GOP
- Do not include quotation marks around the abbreviation
  - (UPS) not ("UPS")
- When abbreviating the name of a government agency, the usual preference is to drop "the"
  - "DOJ" not "the DOJ"
  - BUT "the FTC," not "FTC."

Rule 6.2

Numerals and Symbols

- Spell out numbers from zero to ninety-nine; for larger numbers use numerals (BUT several exceptions!)
  - *E.g.*, if the number starts a sentence
- Never use superscripts for ordinals (*e.g.*, 41st NOT 41st)
- In citations, 2nd → 2d (*e.g.*, 2d Cir.) and 3rd → 3d (but not in textual sentences)
- S.R. 6.2: use commas to separate groups of three digits, even in numbers with only four digits. (BUT: No commas in years.)
  - Right: 1,234 | Wrong: 1234
  - Right: Taylor Swift was born in 1989.
  - BUT: Always follow a source's convention when citing page numbers

Rule 6.2

- Section (§) and paragraph (¶)
  - Use the symbol in citations
    - Option + 6 for the section symbol and option + 7 for the paragraph symbol (Mac)
    - Insert a non-breaking space between § or ¶ and the numeral
  - Spell out in text
    - Except when referring to the U.S. Code or a federal regulation
- Dollar ($) and percent (%)
  - Symbols should be used when numerals are used, and spelled out when numbers are spelled out
  - No space between $ or % and numeral

Rule 7:

Italicization for Style and in Unique Circumstances

Italicization for Style

- Words and phrases may be italicized for style (up to the author)
- Do not italicize common, short Latin phrases (non-exhaustive list in the *Bluebook* under Rule 7)
- Do italicize
  - Letters representing hypothetical parties, places, or things (*A* went to bank *B* in state *X*)
  - The lowercase "*l*" when used as a subdivision
  - Mathematical expressions ($a > 2b$)

Rule 8: Capitalization

Rule 8

Capitalization

- In headings and titles, don't capitalize articles, conjunctions, or prepositions that are four or fewer letters, unless they (1) begin the heading or title or (2) immediately follow a colon
- S.R. 8: Capitalize "to be" verbs (*e.g.*, Is, Are, Be)
- Do NOT capitalize "to" as part of an infinitive
  - *To Be or not to Be?*

Rule 8

- **Rule 8(c)** contains a list of nouns that need to be capitalized in certain situations
  - Members of Congress vs. congressional hearings
  - Second Circuit vs. this circuit

- **S.R. 8**:
  - Capitalize "Article," "Note," etc. when the author is referring to their own piece but NOT when they're referring to other pieces
  - Capitalize "Part" and "Section" when referring to subdivisions of a written work
  - Capitalize "Black," "Native," and "Indigenous"
  - See S.R. 8 for more.

Rule 9:
Titles of Judges, Officials, and Terms of Court

Judges, Officials, Terms of Court

- Parenthetical references to "Brennan, J.," "Scalia, J.," "Brennan & Scalia, JJ."
- Capitalize "Judge" and "Justice" when giving the name of a specific judge or justice or when referring to a Justice of the Supreme Court

Rule 9

- **<u>S.R. 9</u>:** Provide a person's first name on first reference in the text, except for judges, Justices, and presidents
  - Exception: do provide first names when judges, Justices, and presidents are not being referred to in their institutional capacity
  - In an article in the *Yale Law Journal*, Judge Richard Posner discussed the life of Judge Hand, the legendary jurist of the Second Circuit.
- **<u>S.R. 9(a)</u>:** In paragraphs where judges, Justices, and presidents are named more than once, include their title on the first reference but only their last name in subsequent references.
  - Justice Barrett joined the Court in 2020. Barrett was previously a judge on the Seventh Circuit.

Practice Exercise

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Incorrect text

As the 4th circuit said in Yale v. Harvard: 'many people believe that New Haven is the best city in the U.S.' [1]

[1] 45 F. 2d. 983, 985-986 (4th Cir. 1999). But see *Yale v. New Haven*, 89 U.S. 109, 208 (1922) (Sotomayor, JJ., dissenting) (noting that she "would have preferred living in Princeton… but there was no law school there."). See, e.g., Gerald E. Frug, *The City as A Legal Concept*, 93 Harv. L.Rev 1057, 1055 (1980).

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LE: The pincite looks incorrect. I will check the source and fix.

LE: The U.S. Reporter and date look incorrect (Sotomayor was not on Supreme Court in 1922; U.S. Reports in the 500s now). I will check the source and fix.

**We'll make these years-on-the-Court questions fairly obvious.*

Questions?

Bluebook **Training, Rules 10-11: Monday, February 23, 3:10 pm, SLB 122!**